

JUSTIFICATION REVIEW DOCUMENT – JUSTIFICATION AND APPROVAL (J&A)			
CONTROL #	[REDACTED]		
Program/Equipment	Simplex Fire Alarm Control Panel (FACP) systems, a proprietary system that operates at Brooke Army Medical Center (BAMC) is being procured by J&A authority.		
Authority:	10 U.S.C 3204(a)(1) as implemented by FAR 6.302-1(c)	AMOUNT	[REDACTED]
Prepared by:	Name: La Rhonda Archie Title: Contract Specialist	Phone: 251-441-5539	
Contracting Officer (See Sections 13-14 Below)	Name: Robert McAllister Title: Contracting Officer	Phone: 251-690-2912	
Technical Rep (See Section 11 Below)	Name: Milan Portis Title: Technical Manager	Phone: 251-721-4675	
Requirements Rep (See Section 12 Below)	Name: Amber Houston Title: Lead Technical Manager	Phone: 251-694-4016	
Signatures Are Required Below:			
<i>I have reviewed this justification and find it adequate to support other than full and open competition</i>			
Deputy for Small Business	Signature: RODGERS.SONYA A.D. [REDACTED] Digitally signed by RODGERS.SONYA.D. Date: 2025.04.01 12:05:01 -05'00'	Date: (See Signature)	
	Name: (See Signature)	Phone: 251-441-3597	
Project Manager (If no PM, use N/A)	Signature: [REDACTED]	Date: 01 April 2025	
	Name: Stanley Dowdy	Phone: 251-656-3855	
Office of Counsel (OC)	Signature: ANGUS.KALEY.ELIZABETH ABETH. [REDACTED] Digitally signed by ANGUS.KALEY.ELIZABETH Date: 2025.03.31 09:38:51 -05'00'	Date: (See Signature)	
	Name: (See Signature)	Phone: (See Signature)	
Business Oversight Branch (BOB) Chief	Signature: [REDACTED] Date: 2025.04.03 16:13:25 -05'00'	Date: (See Signature)	
	Name: James K. Kiesling	Phone: 251-441-5591	
Chief of Contracting Office (CoCO)	Signature: [REDACTED] 2025.04.04 07:07:13 -05'00'	Date: (See Signature)	
	Name: Carl Wade	Phone: 251-441-6501	

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

1. **Contracting Activity:** U.S. Army Corps of Engineers (USACE), Directorate of Contracting, Mobile Regional Contracting Center, P.O. Box 2288, Mobile, Alabama 36628-0001.

2. **Description of Action:** This Justification and Approval (J&A) is to specify Simplex Fire Alarm Control Panel (FACP) system brand name specification to be included in Solicitation W9127824R0122, which is an Indefinite Delivery Indefinite Quantity (IDIQ) Multiple Award Task Order Contract (MATOC); specifically, this J&A is for the seed project at Brooke Army Medical Center (BAMC) and outlying buildings at Joint Base San Antonio (JBSA), Texas in support the Defense Health Agency (DHA) program. The seed project (first task order) will be an operation and maintenance with repair and minor construction firm fixed price task order, using DHA Fiscal Year (FY) 2025 O&M funds. The period of performance for the BAMC seed project is a one year base period with four one year options. This brand name J&A is limited to the seed project task order and is not applicable to the base contracts or any subsequent task orders expected under this MATOC.

3. **Description of Supplies/Services:** The U.S. Army Corps of Engineers, Mobile District (SAM) intends to place a brand name specification under a new O&M with incidental Repair and Minor Construction task order at BAMC, JBSA, Texas.

The installed fire alarm systems and field devices maintenance are Simplex items and are maintained under O&M contracts at BAMC and outlying buildings by the O&M contractor (task order awardee). Based on historical data of similar requirements, the total estimated dollar value is [REDACTED] over five years, [REDACTED] annually.

ITEM	PROPOSED MAKE	FACILITY
Fire Alarm System/ Field devices maintenance	Simplex/4100U and 4100ES	Main Hospital
Fire Alarm System/ Field devices maintenance	Simplex/4100U and 4100ES	Outlying Buildings

4. **Authority Cited:** The statutory authority permitting acquisition of this requirement by other than full and open competition is 10 U.S.C 3204(a)(1), as implemented by FAR 6.302-1 “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements”.

5. **Reason for Authority Cited:** As set forth in FAR 6.302-1(a)(2), when the supplies or services required by the agency are available from one source, or for DoD, National Aeronautics and Space Administration, and the Coast Guard, from only one or a limited number of sources, and no other types of supplies or services will satisfy agency requirements, full and open competition need not be provided. This authority is applicable to the brand-name descriptions in [REDACTED]

accordance with FAR 6.302-1(c). Additionally, FAR 6.302-1(c)(ii)(A) & (B) state the J&A approval/threshold requirements are only applicable to the portion of the acquisition specific to the brand-name specification, and the J&A should indicate that the use of such descriptions in the applicable portion of the acquisition is essential to the Government's requirements, which precludes consideration of products from other manufacturers.

- a. Background: The O&M with incidental repair and minor construction mission at BAMC is a new requirement. BAMC is the United States Army and DoD's only Continental United States (CONUS) ten story Level I Trauma Center at approximately 4M square feet with a rooftop and a ground level Heliport. BAMC is home to the DoD's Burn Center; Bone Marrow Transplant Center; Traumatic Brain Injury (TBI) Research; 34 Operating Rooms (28 trauma and general surgery), 2 Oral Maxillofacial Surgery (OMFS) Suites, 2 Labor & Delivery (L&D) Suites, and 2 Burn Center Suites; 66 Critical Care Beds; a Cardiac Catheter Center; 2 Central Energy Plants/Central Utility Plants (CEPs/CUPs); Nine Clinical Pharmacies with Compounding Rooms; 2 Medical Linear Accelerators (LINAC); 3 Magnetic Resonance Imaging (MRI) units; 4 Computed Tomography (CT); a Computerized Axial Tomography (CAT) unit; 2 Clinical Labs; a Nutritional Medicine Dining Facility with outlying cafeterias and 3rd Party concession areas; and Center for the Intrepid (CFI) pioneering cutting-edge Limb Salvage, Prosthetics and rehabilitation procedures. BAMC is not a single contiguous facility. It is comprised of geographically separated facilities within the Medical Facilities Annex, Fort Sam Houston, Camp Bullis, and other Joint Base San Antonio Installations. There are two outpatient pharmacies, two outpatient clinics and two dental clinics on Fort Sam Houston (FSH).
- b. Justification: Simplex plays a crucial role in maintaining and upgrading the fire alarm systems at JBSA medical facilities. By utilizing the Simplex FACP system, it ensures that the fire alarm infrastructure within BAMC and outlying buildings seamlessly integrates with the facilities across all medical and dental locations within the JBSA medical command. Additionally, Simplex FACP are proprietary systems that require parts and services from a licensed service technician. In order to replace, install, or modify this system the subcontractor will need to be a Simplex FACP Partner. A non-certified technician related to the system cannot repair or maintain the equipment. Services are required for the operations, maintenance, certification and repairs of the fire protection, fire alarms, and fire suppression systems to provide continuous protection to BAMC and outlying buildings at JBSA.
- c. Alternative: Simplex alone possesses the proprietary equipment necessary to integrate with the current system in place at BAMC. Application of Simplex FACP is essential to meeting the Government's requirements, thereby precluding consideration of another product. The only alternative would be utilizing a different brand. However, this would require not only purchasing the component (s) but also purchasing new Simplex FACP equipment and all related equipment, which would then be specific to that brand name. This is not a feasible approach. Use of the Simplex FACP offers the only solution that will meet the project requirements while also allowing the user to meet their mission requirements.

- [REDACTED]
- [REDACTED]
- d. Impact: If this J&A is not approved, USACE's O&M mission at BAMC will not be executed in accordance with user requirements. Other areas of concern include introduction of incompatible components/hardware, accessibility of local service, compatibility of software/hardware upgrades, and availability of spare parts. Any other controls provider is unable to provide the required software/hardware upgrades, training of day-to-day operations, and manuals of parts. Manufacturer support from Simplex is a major concern and may be compromised if parts/services were sought through a third-party vendor.

6. Efforts to Obtain Competition:

- a. Effective competition: The Contracting Officer published the notice required by FAR 5.201, as described below. In accordance with FAR 5.2, Synopses of Proposed Contract Action, a Notice of Intent under Notice ID W9127822R0122 for NAICS 236220, Commercial and Institutional Building Construction, to include the brand name specifications for Simplex Fire Alarm Control Panel equipment was posted to SAM.gov on 12 February 2025 with a response date of 27 February 2025. No responses were received.
- b. Subcontracting competition: Simplex FACP equipment is commercially available off-the-shelf equipment. The equipment will be purchased by subcontract of the competitively selected prime contractor for the continued O&M coverage at BAMC and its outlying buildings.

7. Actions to Increase Competition: There are no known actions to be taken to increase competition for similar future procurements that would not result in increased project costs, reduced efficiencies and increased overhead costs from installation and maintenance of an entirely different FACP equipment system.

8. Market Research: A special notice under Notice ID W9127824R0122 was posted to SAM.gov on 12 February 2025 and requested responses by 27 February 2025. The special notice stated the intent was to use a brand name specification for the Simplex FACP equipment and requested interested parties to submit their qualifications. No responses were received to this special notice.

9. Interested Sources: This J&A will be posted with the issuance of the solicitation in accordance with FAR 5.102(a)(6).

10. Other Facts: Reasonable efforts to retrieve the following items from computer records, contract files, competition advocate office files or other sources to support the use of other than full and open competition as follows:

- a. Procurement history:

- (1) This is a new procurement. It will be competed as the seed project via a MATOC solicitation.

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- b. Other Facts: There are no additional facts to add in support of the Simplex J&A.

11. **Technical Certification:** I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Name: Milan Portis

Title: Technical Manager

PORTIS.MILAN.ELLIS.

Digitally signed by
PORTIS.MILAN.ELLIS.

LLIS.

Date: 2025.03.28 14:48:00 -05'00'

Date: See Signature

Signature

12. **Requirements Certification:** I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Name: Aimee McCormick

Title: Program Manager

MCCORMICK.AIMEE.ELIZABETH

Digitally signed by
MCCORMICK.AIMEE.ELIZABETH

ZABETH

Date: 2025.04.01 09:59:53 -05'00'

Date: See Signature

Signature

13. **Fair and Reasonable Cost Determination:** I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based on analysis that includes comparison with the Government Estimate. In accordance with FAR 15.403-1(b)(1), Certified Cost & Pricing Data will not be required for this action.

Name: Robert S. McAllister

Title: Contracting Officer

MCALLISTER.ROBERT.S.

Digitally signed by
MCALLISTER.ROBERT.S.

ERT.S.

Date: 2025.04.02 09:14:42 -05'00'

Date: See Signature

Signature

14. **Contracting Officer Certification:** I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Robert S. McAllister

Title: Contracting Officer

MCALLISTER.ROBERT.S.

Digitally signed by
MCALLISTER.ROBERT.S.

ERT.S.

Date: 2025.04.02 09:15:08 -05'00'

Date: See Signature

Signature

[REDACTED]

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of Simplex (4100U/4100ES) Fire Alarm Control Panel equipment on an other than full and open competition basis pursuant to the authority of FAR 6.302-1 and 10 U.S.C. 3204(a)(1). The approval is subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Approved By:

MCALLISTER.ROB
ERT.S [REDACTED]

Digitally signed by
MCALLISTER.ROBERT [REDACTED]
Date: 2025.04.02 09:15:29 -05'00'

Date: See Signature

ROBERT S. MCALLISTER
Contracting Officer
U.S. Army Corps of Engineers, Mobile District